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| <b>6</b> | <b>Rashtchi vs. Madison Law, APC</b><br><br>2025-01482962 | <b>Motion to Be Relieved as Counsel of Record</b><br><br><p>The motion by Anthony G. Graham, Graham &amp; Associates LLP, to withdraw as counsel by plaintiff Azin F. Rashtchi, is CONTINUED to June 26, 2026 at 9 AM.</p> <p>First, proof of service of the moving papers is defective, as the sender's electronic service address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).) The client filed a response, which arguably waives the defective proof of service on the moving papers (Carlton v. Quint (2000) 77 Cal.App.4th 690, 698), but the same is not true of defendants and/or defense counsel.</p> <p>The Court also observes that the client's response (ROA 23) is untimely (Code Civ. Proc., § 1005, subd. (b)), and does not have any proof of service.</p> <p>Second, moving party failed to use all required forms, specifically the required declaration (form MC-052), or the required proposed order (form MC-053). (CRC 3.1362, subds. (c), (d), (e).)</p> <p>Moving party shall re-serve the notice of motion; and shall file and serve a completed declaration (form MC-052), a completed proposed order (form MC-053), a notice of continuance, and a compliant proof of service of all of the foregoing, by May 29, 2026.</p> <p>Moving Party shall give notice.</p> |
| <b>8</b> | <b>Moss vs. Holdo</b><br><br>2024-01371170                | <b>Motion to Be Relieved as Counsel of Record</b><br><br><p>Attorney Kristine A. Thagard's motion to be relieved as counsel of record for defendant Meshel Sohl is GRANTED. This order shall</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|   |                                                                             | <p>become effective upon the filing of the proof of service of the signed order.</p> <p>Moving Party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 9 | <p><b>Pendley vs. Jamboree Housing Corporation</b></p> <p>2025-01481445</p> | <p><b>Motion to Strike - Anti SLAPP</b></p> <p>Defendant C. Tyler Greer’s Special Motion to Strike Plaintiff John Pendley’s Second Amended Complaint is GRANTED. (Code Civ. Proc. §425.16.)</p> <p>An Order to Show Cause Re: Dismissal of Defendants Santa Ana Senior Associates, ConAm Management Corporation, Metro East Senior Park, Maria Chavez, and Christian Lopez pursuant to Code Civ. Proc. §581 is set for December 14, 2026 at 9 AM in this department.</p> <p>General Anti-SLAPP Framework</p> <p>Code Civ. Proc. §425.16 authorizes a special motion to strike claims arising from any act “in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue.” (Code Civ. Proc., § 425.16, subd. (b)(1); see id., § 425.16, subd. (e).) The anti-SLAPP statute “allows defendants to request early judicial screening of legal claims targeting free speech or petitioning activities” (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 880-881), and its provisions must be construed broadly (Code Civ. Proc., § 425.16, subd. (a)).</p> <p>The resolution of an anti-SLAPP motion involves two steps. First, the moving defendant must show that the challenged claim arises from constitutionally protected free speech or petition rights. (Baral v. Schnitt (2016) 1 Cal.5th 376, 381-382, 396.) If the defendant makes the requisite showing at the first stage, the burden then shifts to the plaintiff to demonstrate the claim’s merit</p> |